

CANNACTIVA**Cannactiva <isi@cannactiva.com>**

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7 mensajes

Giacomo Bulleri <giacomo.bulleri@gmail.com>
Para: "pavel.pachta@gmail.com" <pavel.pachta@gmail.com>
Cc: Cannactiva <isi@cannactiva.com>

19 de enero de 2026 a las 9:57

Hello Pavel,

As you know, I am handling the appeal to the CJEU on the question raised by the Italian Council of State, which will finally address the entire issue of the legality of hemp flowers and derivatives with low THC content in the European law context, extending to the implications for cosmetics and foodstuffs referred to in the respective EU regulations.

That said, I was wondering if it would be possible to have a short text from you and/or the CND stating that the list of hemp plant parts contained in the SC is not exhaustive but illustrative. This would be very useful in our judgement.

I am copying in my friend Isidre Carballido from the Cannabis Hub in Barcelona, who is handling an internal appeal in Spain against Royal Decree 903/2025 regulating medicinal cannabis and who is interested in receiving advice.

Can you advise me on how to proceed and what forms of collaboration would be appropriate, given your role, for collaboration on the above actions?

Kind regards,
Giacomo

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Para: Giacomo Bulleri <giacomo.bulleri@gmail.com>
Cc: "pavel.pachta@gmail.com" <pavel.pachta@gmail.com>

19 de enero de 2026 a las 23:28

Dear Mr. Pachta, Giacomo,

Thank you for the introduction. It's a pleasure to e-meet you.

I am writing on behalf of Cannabis Hub regarding an ongoing legal challenge before the Spanish Supreme Court (Case 395/2025) against Royal Decree 903/2025 on medicinal cannabis.

We are seeking an expert opinion from a recognized authority on international drug control frameworks, and your expertise on the Single Convention on Narcotic Drugs 1961 and European cannabis regulation would be invaluable to our case.

Spain has enacted Royal Decree 903/2025 regulating medicinal cannabis. In the accompanying Regulatory Impact Assessment (MAIN), the Spanish authorities state that **cannabis flowers constitute a narcotic substance regardless of their THC content**. This interpretation endangers the free movement of agricultural goods based on hemp inflorescence intended for medicinal sub-products, or for non-narcotic & non-medicinal applications (cosmetics, food supplements, herbal smoking products regulated in the EUROPEAN TABACO PRODUCTS DIRECTIVE).

The Decree also creates deliberate regulatory silence regarding products below 0,2%THC threshold, leaving the non-medicinal CBD sector—which has operated in Spain for over 20 years with approximately 2,000 retail points—in legal uncertainty.

Questions for Expert Opinion

We would be grateful if you could address the following questions in a formal expert opinion:

- 1. Agricultural classification of hemp flowers:** Under international law, are hemp flowers (*Cannabis flos*) from varieties registered in the EU Common Catalogue, cultivated in compliance with CAP Regulations, properly classified as agricultural products? Does the potential for pharmaceutical use in finished products alter this classification automatically, or does CN61 only apply when the material is actually destined for narcotic recreational end products?
- 2. CN61 exemptions and teleological interpretation:** In your expert view, does the Single Convention 1961 exempt cannabis materials that lack sufficient narcotic effect? How should Article 28 exemptions be interpreted in light of the Convention's purpose—controlling substances with abuse potential—when applied to **CBD-chemotype** hemp with negligible psychoactive properties?
- 3. THC threshold for raw agricultural materials:** We understand that determining whether a finished consumer product constitutes a narcotic substance involves considerations of pharmacokinetics, absolute dose, and format—matters beyond the scope of CN61 itself. However, for raw agricultural materials (hemp biomass, flowers, crude resin) to benefit from exemption and move freely within the internal market, a standardized THC cut-off point is necessary. This threshold is not strictly scientific but serves as a **political threshold** for trade harmonization. Considering the European Pharmacopoeia's CBD chemotype definition (**≤1% THC, Ph. Eur. 3028**), Czech domestic law, and the approximately 40 jurisdictions now applying 1% as a limit for agricultural hemp raw materials, what threshold would best serve legal certainty and free movement of exempt agricultural goods?

Additional Strategic Consideration

Your expert opinion would be central to our legal arguments. Additionally, we are considering whether to seek an official clarification directly from the current INCB Secretariat regarding the scope of Article 28 exemptions.

Given your unique insight into INCB procedures, we would greatly value your advice on what would be the most effective way to contact the Secretariat for such a request, whether in your assessment such an inquiry would likely yield a favorable or useful response for our purposes, and what framing or approach you would recommend to maximize the chances of a constructive reply.

Procedural Timeline

The case has been admitted by the Supreme Court (Third Chamber, Section 4) with a reporting judge assigned. We anticipate filing the formal complaint within 20 business days of receiving the administrative file (expected mid-February 2026). An expert opinion supporting our arguments on international law interpretation would significantly strengthen our position.

We would of course provide appropriate compensation for your time and expertise. Please let me know if you would be available to discuss the scope and terms of this engagement.

Thank you for considering this request. I remain at your disposal for any clarification.

With kind regards,



Isidre Carballido | Cannactiva | COO

Phone: [Schedule a call](#)

Website: <https://cannactiva.com>

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[El texto citado está oculto]

Pavel Pachta <pavel.pachta@gmail.com>
Para: Cannactiva <isi@cannactiva.com>
Cc: Giacomo Bulleri <giacomo.bulleri@gmail.com>

21 de enero de 2026 a las 21:32

Dear Giacomo and dear Isidre,

thank you for you mails with interesting questions and I apologize that I am responding only now..

First, my response to Giacomo and partly also to Isidre:

I could draft a brief statement explaining why, in my opinion, the specifclcation of fibre and seed in article 28 of the SC can be seen as an example.

INCB adopted the same position ("can be seen") when I was member of INCB in 2024. I know that information on this new position and some other new positions of the Board regarding cannabis were sent to all Governments in the INCB circular letter Ref.: E/INCB/NAR/C.L.20/2024 dated 16 December 2024. Perhaps your Government could confirm to you that such a position of INCB exists.

I think that the secretariat of INCB will most probably not provide you with a copy of this letter, since it was a letter destined for Governments. However, perhaps an international organization of industry such as EIHA could ask INCB for a clarification. They could try to do it by letter or they may ask for a meeting with the secretariat of INCB during the CND, in case they would attend it.

Normally, INCB should have included information on its new positions regarding cannabis in its annual report for 2025. Since I am not member of INCB as of May last year, I do not know whether they have done so. The INCB annual report for 2025 will be made available to the general public probably only one or two weeks before the CND session (9-13 March 2026).

I will provide my observations on Isidre's questions tomorrow.

Best regards,

Pavel Pachta

[El texto citado está oculto]

Pavel Pachta <pavel.pachta@gmail.com>
Para: Cannactiva <isi@cannactiva.com>
Cc: Giacomo Bulleri <giacomo.bulleri@gmail.com>

23 de enero de 2026 a las 21:44

Dear Isidre,

please find below my comments to your questions. If you would need my further support, I would have to know better, what is your problem and what would you like to achieve on the basis of my legal opinion.. We would need to talk over telephone first. my telephone number is 0043 699 1933 9790. I am also on WhatsApp I am available next week most of the time, but let me know the time of your call in advance.

I hope my comments are at least of some use for you.

Best regards,

Pavel Pachta

1. **Agricultural classification of hemp flowers:** Under international law, are hemp flowers (*Cannabis flos*) from varieties registered in the EU Common Catalogue, cultivated in compliance with CAP Regulations, properly classified as agricultural products? **What do you mean under "agricultural products"? The 1961 Single Convention is not using the term "agricultural product". This appears to be a EU terminology. Why are you asking this question? Which products do you have in mind? What is the problem with those products (with the authorities)? Why is it relevant for you? Does the potential for pharmaceutical use in finished products alter this classification automatically, or does CN61 only apply when the material is actually destined for narcotic recreational end products? This is not very clear to me. Which classification? Agricultural products? This is not the terminology used under the Convention. I would approach this matter from another angle, namely for which purposes the hemp flowers are produced. This is important. Are the hemp flowers produced to extract CBD? In that case, we could argue that this is legitimate cultivation for industrial purposes under the Convention. Are the hemp flowers produced for "cannabis light"? This is more difficult, we could, however, argue that the product cannot cause addiction and as such does not have to be controlled as cannabis.**

2. **CN61 exemptions and teleological interpretation:** In your expert view, does the Single Convention 1961 exempt cannabis materials that lack sufficient narcotic effect? **We could argue that there is such an exemption. However, there is no threshold of the maximum THC content in such products. How should Article 28 exemptions be interpreted in light of the Convention's purpose—controlling substances with abuse potential—when applied to CBD-chemotype hemp with negligible psychoactive properties? As mentioned above, we could argue that this is cultivation for industrial purposes -manufacture/extraction of CBD. Controlled cannabinoids (THC) obtained as by product of CBD manufacture should, however, be properly controlled.**

3. **THC threshold for raw agricultural materials:** We understand that determining whether a finished consumer product constitutes a narcotic substance involves considerations of pharmacokinetics, absolute dose, and format—matters beyond the scope of CN61 itself. However, for raw agricultural materials (hemp biomass, flowers, crude resin) to benefit from exemption and move freely within the internal market, a standardized THC cut-off point is necessary. This threshold is not strictly scientific but serves as a **political threshold** for trade harmonization. Considering the European Pharmacopoeia's CBD chemotype definition (**≤1% THC, Ph. Eur. 3028**), Czech domestic law, and the approximately 40 jurisdictions now applying 1% as a limit for agricultural hemp raw materials, what threshold would best serve legal certainty and free movement of exempt agricultural goods? **This is not a question dealt with under the 1961 Single Convention. I do not have the required expertise to propose such a threshold. Perhaps, from the control point of view, we could argue that no problems have been reported (no diversion for illicit use) for materials under ... (1%). This could indicate that this level is sufficient to prevent misuse.**

Am Mo., 19. Jan. 2026 um 23:28 Uhr schrieb Cannactiva <isi@cannactiva.com>:

[El texto citado está oculto]

Cannactiva <isi@cannactiva.com>
 Para: Pavel Pachta <pavel.pachta@gmail.com>
 Cc: Giacomo Bulleri <giacomo.bulleri@gmail.com>

5 de febrero de 2026 a las 8:00

Dear Pavel,

I apologize for the delayed response. I had intended to reply over the past weekend so as not to keep you waiting more than a week, but I was unwell and needed some rest.

Thank you for your thoughtful answers and questions — I truly appreciate them. I would be happy to discuss this further over the phone at your convenience. Please let me know what day and time works best for you.

Still, below my explanations to your questions:

Agricultural classification of hemp flowers: Under international law, are hemp flowers (*Cannabis flos*) from varieties registered in the EU Common Catalogue, cultivated in compliance with CAP Regulations, properly classified as agricultural products?

What do you mean under "agricultural products"? The 1961 Single Convention is not using the term "agricultural product". This appears to be a EU terminology.

Why are you asking this question? Which products do you have in mind? What is the problem with those products (with the authorities)? Why is it relevant for you?

Does the potential for pharmaceutical use in finished products alter this classification automatically, or does CN61 only apply when the material is actually destined for narcotic recreational end products? This is not very clear to me. Which classification? Agricultural products? This is not the terminology used under the Convention. I would approach this matter from another angle, namely for which purposes the hemp flowers are produced. This is important. Are the hemp flowers produced to extract CBD? In that case, we could argue that this is legitimate cultivation for industrial purposes under the Convention. Are the hemp flowers produced for "cannabis light"? This is more difficult, we could, however, argue that the product cannot cause addiction and as such does not have to be controlled as cannabis.

I apologize for the confusion. My corrected question would be: Are industrial hemp flowers exempted from CN61 according to Article 28?

I ask this question because Spain's position is to consider ANY flower of cannabis as a scheduled substance under CN61, regardless of THC content, and only permitted for medicinal purposes.

However, Spain takes some arbitrary interpretations. Some products are not medicinal and still contain extracts or raw cannabis flowers.

The situation in Spain is this:

Cosmetics with CBD extracts do not require a medical license to be imported.

- **Some extracts below 0.2% THC (such as pharmaceutical Epidiolex) have been considered outside the scope of CN61.**
- **However, hemp flowers to produce these extracts need to be imported with a Narcotics License.**
- **And also, hemp flowers registered as "Herbal smoking products" in other Member States are prohibited in Spain and considered narcotics. In terms of control of this products, yes there is control which is comprehended within the TPD/EU/40/2014.**

All this, considering the new OCM proposal and the fact that hemp flowers are already included in Annex I to the TFEU and the Common Market Organisation (CMO) Regulation (EU) 1308/2013.

Our main concern is to equalize the situation between raw materials. If an extract below 0.2% is exempted from CN61, why isn't a flower with the same conditions? This is expressed in Article 3 of the Royal Decree.

You can also see this contradiction in the MAIN document of the Spanish Royal Decree. During the public consultation, the European Industrial Hemp Association (EIHA) asked whether all cannabis should be considered a narcotic. The Ministry of Health responded:

"The 1961 Single Convention defines cannabis as 'the flowering or fruiting tops of the cannabis plant from which the resin has not been extracted' without any reference to THC content or chemotypes. These

definitions also cover cannabis plants cultivated for fibre and seeds, which may produce insignificant or zero volumes of resin, and whose flowering tops may contain only minute quantities of the active principle." But in the same response, the Ministry added: "Sativex and Epidiolex are cannabis extracts, not flowering tops."

From my perspective, this is the contradiction: "extracts and tinctures of cannabis" are expressly included in Schedule I of the Convention, alongside flowers and resin. If the Ministry can exempt Epidiolex (an extract) from scheduling, why can it not apply the same reasoning to hemp flowers with the same THC conditions?

The second concern is: products that are not classified under CN61 (flowers or extracts) should also be considered different from medicines. Not all extracts or flowers exempted from CN61 need to be considered medicines (CBD cosmetics or hemp for smokeable purposes).

2. CN61 exemptions and teleological interpretation: In your expert view, does the Single Convention 1961 exempt cannabis materials that lack sufficient narcotic effect? **We could argue that there is such an exemption. However, there is no threshold of the maximum THC content in such products.** How should Article 28 exemptions be interpreted in light of the Convention's purpose—controlling substances with abuse potential—when applied to **CBD-chemotype** hemp with negligible psychoactive properties? **As mentioned above, we could argue that this is cultivation for industrial purposes -manufacture/extraction of CBD. Controlled cannabinoids (THC) obtained as by product of CBD manufacture should, however, be properly controlled. Perfect, cultivation and / or distribution of raw materials?**

3. THC threshold for raw agricultural materials: We understand that determining whether a finished consumer product constitutes a narcotic substance involves considerations of pharmacokinetics, absolute dose, and format—matters beyond the scope of CN61 itself. However, for raw agricultural materials (hemp biomass, flowers, crude resin) to benefit from exemption and move freely within the internal market, a standardized THC cut-off point is necessary. This threshold is not strictly scientific but serves as a **political threshold** for trade harmonization. Considering the European Pharmacopoeia's CBD chemotype definition (**≤1% THC, Ph. Eur. 3028**), Czech domestic law, and the approximately 40 jurisdictions now applying 1% as a limit for agricultural hemp raw materials, what threshold would best serve legal certainty and free movement of exempt agricultural goods? **This is not a question dealt with under the 1961 Single Convention. I do not have the required expertise to propose such a threshold. Perhaps, from the control point of view, we could argue that no problems have been reported (no diversion for illicit use) for materials under ... (1%). This could indicate that this level is sufficient to prevent misuse. Perfect, thanks**

Again, I'm pleased to have a phone call to discuss any questions more deeply if needed.

Thanks for your attention.

All the best,



Isidre Carballido | Cannactiva | COO

Phone: [Schedule a call](#)

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[El texto citado está oculto]

Pavel Pachta <pavel.pachta@gmail.com>
Para: Cannactiva <isi@cannactiva.com>
Cc: Giacomo Bulleri <giacomo.bulleri@gmail.com>

9 de febrero de 2026 a las 0:20

Dear Isidre,

Many thanks for your clarifications. Now, everything is much more clear!

Unfortunately, I was very busy during these days but I will respond to you as soon as possible during this week.

Best regards,

Pavel

Pavel Pachta

[El texto citado está oculto]

Cannactiva <isi@cannactiva.com>
Para: Pavel Pachta <pavel.pachta@gmail.com>
Cc: Giacomo Bulleri <giacomo.bulleri@gmail.com>

14 de febrero de 2026 a las 13:54

Hi Pavel,

Thanks for the update, we look forward to your comments when you have time. Very appreciated.

All the best,



Isidre Carballido | Cannactiva | COO

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El dl., 9 de febr. 2026, 0:20, Pavel Pachta <pavel.pachta@gmail.com> va escriure:

28/4/26, 11:23

Correo de cannactiva.com - info CND

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